

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

=====X
SAMUEL SWEEPER,

Plaintiff(s),

- against -

INDEX NO.
Plaintiff(s)
designate
New York County
as the place of
trial.
The basis of

venue
is situs of
accident.

**SUMMONS WITH
NOTICE**

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, DETECTIVE ROBERT
GREENLEAF, SHIELD NO. 808, SERGEANT
BURIM BERISHA SHIELD NO. C0145, and JOHN
DOES #1-2,

Plaintiff
resides at
231 Steuben Street
Staten Island, NY 10304

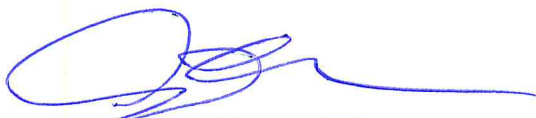
Defendant(s).

County of
Richmond

=====X
TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiffs' Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

Dated: New York, New York
November 6, 2013



By: Steven Seener, Esq.
SEENER & SEENER
Attorneys for the Plaintiff(s)
Office & P.O. Address
11 PARK PLACE
10TH FLOOR
New York, New York 10007
(212) 766-2050

Defendant(s) address:

1. The City of New York: 100 Church Street, New York, NY 10007.
2. NEW YORK CITY POLICE DEPT. c/o Corp. Counsel 100 Church Street, N Y, N Y

10007

3. DETECTIVE ROBERT GREENLEAF, SHIELD NO. 808, Narcotic Borough Manhattan North, c/o Corp. Counsel 100 Church Street, N Y, N Y 10007

4. SGT. BURIM BERISHA, Narcotic Borough Manhattan North, c/o Corp. Counsel 100 Church Street, N Y, N Y 10007.

Notice: The nature of this action is VIOLATION OF CIVIL RIGHTS, 42 USC 1983 ACTION; FALSE ARREST; MALICIOUS PROSECUTION; TORT; INTENTIONAL TORT, NEGLIGENCE; VIOLATION OF CONSTITUTIONAL RIGHTS (NEW YORK STATE and U.S. CONSTITUTION) UNLAWFUL IMPRISONMENT.

The relief sought is monetary damages.

Upon your failure to appear, judgment will be taken against you by default for an amount to be determined by a jury or trier of fact at the time of trial and in an amount which exceeds the jurisdictional limitations of all the lower courts which would otherwise have jurisdiction, together with interest from April 6, 2013, and the costs of this action.

INDEX NUMBER PURCHASED AND SUMMONS AND COMPLAINT FILED:

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

=====X
SAMUEL SWEEPER,

Plaintiff,

INDEX #

COMPLAINT

-against-

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, DETECTIVE ROBERT
GREENLEAF, SHIELD NO. 808, SERGEANT
BURIM BERISHA SHIELD NO. C0145, and JOHN
DOES #1-2,

Defendants.

=====X

AS AND FOR A FIRST CAUSE OF ACTION

1. That at all times hereinafter mentioned, the plaintiff was resident of the County of Richmond, City and State of New York.

2. That at all times hereinafter mentioned the defendant, THE CITY OF NEW YORK, was and still is a municipal corporation, duly formed and existing by virtue of the laws of the State of New York.

3. That at all times hereinafter mentioned the defendant, THE NEW YORK CITY POLICE DEPARTMENT, was and still is department of the defendant, THE CITY OF NEW YORK, was duly formed and existing by virtue of the laws of the State of New York.

4. That the plaintiff has complied with all of the conditions precedent to the bringing of this action and more particularly, that a Notice of Claim was served on the defendant, THE CITY OF NEW YORK within 90 days of his arrest of April 6, 2013 are

another Notice of Claim was served 8/22/13 and that statutory hearings pursuant to Section 50-H of the Municipal Law was held; and that more than 30 days have elapsed to date from the service of the notices of claim and the plaintiff's claims remain unresolved.

5. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Section 1983, and of rights secured by the First, Fourth and Fourteenth Amendments to the United States Constitution, and the laws of the State of New York and the New York State Constitution.

6. The prosecution of the plaintiff was unlawful, and unjust; and the arrest, search, detainment and prosecution of the plaintiff constituted a deprivation of the plaintiff's constitutional rights and further there was a malicious prosecution; the initial occurrence took place on April 6, 2013 at approximately 1:35 p.m. at or near 2001 5th Ave., New York, New York and further the plaintiff was taken to the 33rd Precinct, 2207 Amsterdam Ave., New York, NY; and plaintiff appeared in Criminal Court New York County on approximately four occasions and on the last occasion the case against him was dismissed. The defendants, City of New York, New York City Police Department, Detective Robert Greenleaf and Sergeant Burim Berisha and other New York City police officers (John Does #1-2) arrested the plaintiff without probable cause and unlawfully detained and handcuffed him. The plaintiff's rights were violated, in violation of the Fourth and Fourteenth Amendments to the United States Constitution. Plaintiff was deprived of his constitutional and common law rights and rights under the United States Constitution and New York State Constitution when the individual defendants unlawfully arrested, stopped, searched, confined plaintiff, caused the unjustifiable arrest of the plaintiff, detention of the plaintiff

and the malicious prosecution of the plaintiff.

7. The occurrence and events involving the plaintiff herein took place initially on APRIL 6, 2013 at approximately 1:35 P.M. commencing in and/or near to 2001 5th Avenue, New York, NY, and continuing into a police van, the 33rd Precinct and Criminal Court, New York County (100 Centre Street, New York, N Y) all in the county, City and State of New York.

8. At that time and place plaintiff, SAMUEL SWEEPER, was falsely arrested, unjustly and falsely imprisoned, had his civil rights violated by the defendants, City of New York, New York City Police Dept., Detective Robert Greenleaf and Sergeant Burim Berisha, and other officers, police officers, agents, servants and/or employees of the defendants (other police officers John Does #1-2 being unknown at this time).

9. Plaintiff was falsely arrested and/or arrested without probable cause, without reasonable cause, without legal process and without legal justification. The plaintiff, SAMUEL SWEEPER, was thereafter taken into custody and kept and detained in custody of the Police Dept. against his will; he was held by officers of the New York City Police Dept. and of the 33rd Precinct; plaintiff was held illegally by the City of New York and/or NYC Police Dept.

10. That plaintiff, SAMUEL SWEEPER, was caused to suffer serious, severe emotional injuries, special damages, loss of freedom and loss of self esteem.

11. That plaintiff, SAMUEL SWEEPER, was handcuffed and held against his will without a legal reason. He was arrested and charged falsely with crimes. He was in police custody on April 6, 2013 from 1:30 p.m. until 9:30 p.m. when he was released.

12. Plaintiff, SAMUEL SWEEPER, was detained; Plaintiff SAMUEL

SWEEPER was arrested, held and searched without a warrant or probable cause; the plaintiff, SAMUEL SWEEPER, was held illegally, falsely accused of committing a crime and handcuffed; the plaintiff, SAMUEL SWEEPER, was unlawfully stopped and accosted without a warrant or probable cause.

13. The plaintiff, SAMUEL SWEEPER, was stopped and arrested without cause or justification or legal basis in violation of his rights under the New York State and U.S. Constitutions. Plaintiff, SAMUEL SWEEPER, was subjected false arrest, unlawful and improper imprisonment, illegal detainment, and unnecessary force; further the defendants acted under color of law specifically, Detective Robert Greenleaf and Sergeant Burim Berisha and other defendants, John Does #1-2.

14. The detainment of the plaintiff, SAMUEL SWEEPER, was baseless and illegal.

15. Plaintiff was a resident of the County of Richmond, City and State of New York.

16. Defendant, Detective Robert Greenleaf, Shield # 808 and Sergeant Burim Berisha, Shield # C0145 were and still are at all times relevant herein officers, employees, and/or agents of the New York City Police Department and/or the City of New York and residents of the State of New York.

17. On the date of incident, April 6, 2013, defendants, Detective Robert Greenleaf and Sergeant Burim Berisha and police officers John Does #1-2 were employees of the defendants, New York City Police Department and/or City of New York.

18. New York City Police Officers John Does #1-2 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

19. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the defendants, New York City Police Department and/or City of New York, at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department and/or City of New York.

20. Defendant, City of New York, is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant, City of New York, assumed the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

21. That on the above stated date and time Detective Robert Greenleaf and Sergeant Burim Berisha and/or other NYC Police Officers accosted, stopped and interrogated plaintiff without probable cause.

22. The defendant police officers then arrested and detained the plaintiff and handcuffed him without probable cause or legal justification.

23. Detective Robert Greenleaf and Sergeant Burim Berisha and/or other police officers observed the other officers or defendants violate plaintiff's rights under the Constitutions of the United States and New York State and did nothing to prevent the

violation of his Constitutional Rights.

24. Failure to intervene by the individually named defendant police officers caused plaintiff to sustain psychological and emotional trauma.

SECOND CAUSE OF ACTION

Violation of Plaintiff's Fourth Amendment and

Fourteenth Amendment Rights

25. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 24 with the same force and effect as if more fully set forth at length herein.

26. Detective Robert Greenleaf and Sergeant Burim Berisha and Defendants Police Officers John Does #1-2, who were acting in concert and within the scope of their authority, arrested and caused plaintiff to be imprisoned and violated plaintiff's right to be free of an unreasonable search and seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

27. Plaintiff suffered emotional injuries as a result of his incarceration and prosecution.

28. As a result of plaintiff's unlawful search and seizure, amounting to a violation of his civil rights, plaintiff suffered degradation, humiliation, loss of reputation and esteem and various other emotional injuries, as well as economic harm.

THIRD CAUSE OF ACTION

29. Plaintiff reiterates and realleges the facts stated in paragraphs 1-28 as if stated fully herein.

30. As a result of their actions, Defendants, acting under “Color of law,” deprived Plaintiff of his rights to freedom and deprived him of liberty without due process of law in violation of the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States and 42 U.S.C. 1983.

31. Defendants subjected Plaintiff to these deprivations of his rights either maliciously or by acting with a reckless disregard whatever Plaintiff’s rights.

32. As a direct and proximate result of the acts of Defendants, plaintiff suffered psychological and economic injuries, endured great pain and mental suffering, was deprived of his physical liberty.

FOURTH CAUSE OF ACTION

33. Plaintiff reiterates and realleges the facts stated in paragraphs 1-32 as if stated fully herein.

34. As a result of their actions, Defendants, acting under “Color of law,” deprived Plaintiff of his right to freedom from excessive force without due process of law in violation of the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States and 42 U.S.C. 1983.

35. Defendants subjected Plaintiff to these deprivations of his rights either maliciously or by acting with a reckless disregard for Plaintiff’s civil rights.

36. As a result of the aforesaid occurrence, Plaintiff suffered the damages and injuries aforesaid. All Defendants are liable for said damage and injuries.

FIFTH CAUSE OF ACTION

For Violation of Civil Rights

37. Plaintiff reiterates and realleges the facts stated in paragraphs 1-36 as if stated fully herein.

38. Defendant, City of New York, and Defendant New York City Police Department, through its police Commissioner, as a municipal policymaker, in the hiring, training and supervision of the Defendants, have pursued a policy and custom of deliberate indifference to the rights of persons in their domain, and in particular, the Plaintiff, thereby violating Plaintiff's rights to freedom from the use of excessive and unreasonable force and freedom, from deprivation of liberty, and from loss of liberty without due process of law in violation of the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States and 42 U.S.C. 1983 and 42 U.S.C. 1985.

39. As a direct and proximate result of the aforementioned policy and custom of deliberate indifference of Defendants New York City and New York City Police Department, Defendants committed the unlawful acts referred to above and thus, Defendants New York City and New York City Police Department are liable for the Plaintiff's injuries.

SIXTH CAUSE OF ACTION

Failure to Intervene

40. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 39 with the same force and effect as if more fully set forth at length herein.

41. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in the presence of other officers.

42. Defendants failed to intervene to prevent the unlawful conduct described herein.

SEVENTH CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

43. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 42 with the same force and effect as if more fully set forth at length herein.

44. The defendant, City of New York and defendant New York City Police Department and their employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants Detective Robert Greenleaf and Sergeant Burim Berisha, and Police Officers John Does #1-2, individuals who were unfit for the performance of police duties on April 6, 2013, at the aforementioned location.

EIGHTH CAUSE OF ACTION

INTENTIONAL TORT

45. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 44 with the same force and effect as if more fully set forth at length herein.

46. The defendants, Detective Robert Greenleaf and Sergeant Burim Berisha, and police officers John Does # 1 -2, are guilty of and liable to the plaintiff for their actions for intentional torts and thereby caused damages to the plaintiff.

NINTH CAUSE OF ACTION

47. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 46 with the same force and effect as if more fully set forth at length herein.

48. That the prosecution of the plaintiff was unreasonable and unjust.

49. Plaintiff asserts a cause of action for malicious prosecution.

50. That the criminal charges against the plaintiff were dismissed by the Criminal Court following a motion.

51. That plaintiff was required unnecessarily to appear in court on numerous occasions.

WHEREFORE, plaintiff demands judgment against the defendants on each cause of action in a substantial sum of money which exceeds the jurisdictional limits of all the lower courts that would otherwise have jurisdiction, and which amount will be determined by the jury or trier of fact against the defendants at the time of trial; together with the interest, costs and disbursements herein;

a. Further, that the plaintiff recover the cost of the suit herein, including reasonable attorneys fees pursuant to 42 U.S.C. § 1988.

b. That the plaintiff have such other and further relief as the Court shall deem just and proper.

Dated: New York, New York
November 6, 2013

By:


STEVEN SEENER, ESQ.
SEENER & SEENER, ESQS.
Attorneys for Plaintiff
SAMUEL SWEEPER
11 Park Place - 10th Floor
New York, New York 10007
Telephone No. 212-766-2050

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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SAMUEL SWEEPER,

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Plaintiff,

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THE CITY OF NEW YORK, NEW YORK CITY
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DOES #1-2,

Defendants.
=====X

| _____ |
SUMMONS AND COMPLAINT
| _____ |


SEENER & SEENER, ESQS.
BY: STEVEN SEENER, ESQ.
ATTORNEYS FOR PLAINTIFF
SAMUEL SWEEPER
11 Park Place - 10th Floor
New York, New York 10007
(212) 766-2050

CERTIFICATION

The foregoing PLEADINGS & PAPERS ARE hereby certified pursuant to 22
N.Y.C.R.R. 1301.1

Dated: New York, New York
November 6, 2013



STEVEN SEENER, ESQ.